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File No.: EXP202401558

RESOLUTION OF RIGHTS PROCEDURE

Having reviewed the complaint registered on January 15, 2024, with this Agency and having carried out the procedural actions provided for in Title VIII of Organic Law 3/2018, of December 5, on the Protection of Personal Data and Guarantee of Digital Rights (hereinafter LOPDGDD), the following FACTS have been established:

FIRST: A.A.A. (hereinafter, the complainant) exercised the right of Access against OCTOPUS ENERGY ESPAÑA, S.A. (hereinafter, the respondent) without receiving the legally established response to their request.

The complainant states that they requested access from the respondent on December 13, 2023, without receiving a response. A copy of the access request sent to the respondent on December 13, 2023, is attached to the complaint.

SECOND: In accordance with Article 65.4 of Organic Law 3/2018, of December 5, on the Protection of Personal Data and Guarantee of Digital Rights (hereinafter LOPDGDD), the complaint was forwarded to the respondent for analysis and to inform this Agency within one month of the actions taken to comply with the requirements set forth in data protection regulations.

THIRD: The result of the transfer procedure indicated in the previous Fact did not allow for the satisfaction of the complainant's claims. Consequently, on April 15, 2024, for the purposes provided for in Article 64.1 of the LOPDGDD, the Director of the Spanish Agency for the Protection of Data agreed to admit the complaint for processing.

The aforementioned agreement granted the respondent a hearing period, to present any arguments they deemed appropriate within ten working days, summarizing the following arguments:

"On April 23, 2024, OCTOPUS sent the interested party a response to their request for the exercise of the right of access to the email address provided by the client, in accordance with the provisions of Article 15 GDPR, using this letter to apologize to the interested party for what occurred. Document No. 1 is attached as a copy of the response to the right of access sent by email to the interested party."

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FOURTH: After examining the document submitted by the respondent, it is forwarded to the complainant, so that, within ten working days, they may formulate any arguments they consider appropriate, summarizing the following arguments:

"With regard to the email requesting access to the interested party's data, a response was received on April 23, 2024, providing the data of name, postal address, ID number, and CUPS. At no time were the data related to the fraudulent contracting operation (telephone, IP address, recording, etc.) provided as requested, nor the means by which the identity of the contractor was verified."

FIFTH: After examining the document submitted by the complainant, it is forwarded to the respondent, so that, within ten working days, they may formulate any arguments they consider appropriate, summarizing the following arguments:

"this party has already effectively and completely addressed the access request made by the interested party on April 23, providing, in accordance with Article 15 of Regulation (EU) 2016/679 of the European Parliament and of the Council of April 27, 2016 (hereinafter, "GDPR") and Article 13 of the LOPDGDD, the information and details of the personal data that OCTOPUS has in its systems regarding said interested party.

In this regard, Document No. 1 is again attached to this letter as proof of compliance with the duty to respond to this request, in accordance with Article 12.4 LOPDGDD.

Additionally, it should be noted that, regarding the matter concerning the interested party's complaint,

OCTOPUS has at no time obstructed the exercise of rights by the interested party, nor has it repeatedly failed to respond to the request for the exercise of rights by the affected party.”

LEGAL GROUNDS

I

Competence

In accordance with the powers granted to each supervisory authority by Article 58.2 of Regulation (EU) 2016/679 (General Data Protection Regulation, hereinafter GDPR), and as established in Articles 47, 48.1, and 64.1 of Organic Law 3/2018, of December 5, on the Protection of Personal Data and Guarantee of Digital Rights (hereinafter LOPDGDD), the Director of the Spanish Agency for the Protection of Data is competent to initiate and resolve this procedure.

Furthermore, Article 63.2 of the LOPDGDD states: “The procedures processed by the Spanish Agency for the Protection of Data shall be governed by the provisions of Regulation (EU) 2016/679, this organic law, and the provisions...”

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regulatory provisions issued in its development and, insofar as they do not contradict them, with a subsidiary nature, by the general rules on administrative procedures.”

II

Preliminary Issues

In accordance with the provisions of Article 55 of the GDPR, the Spanish Data Protection Agency is competent to perform the functions assigned to it in Article 57, including the enforcement of the Regulation and promoting awareness among data controllers and processors regarding their obligations, as well as addressing complaints filed by a data subject and investigating, as appropriate, the reasons for such complaints.

Correspondingly, Article 31 of the GDPR establishes the obligation of data controllers and processors to cooperate with the supervisory authority that requests it in the performance of its functions. In cases where they have appointed a data protection officer, Article 39 of the GDPR assigns this officer the function of cooperating with said authority.

In accordance with this regulation, following the procedure established in Article 65.4 of the LOPDGDD, prior to the admission of the complaint regarding the exercise of the rights regulated in Articles 15 to 22 of the GDPR, which gives rise to this procedure, the complaint was forwarded to the respondent party for analysis, to respond to this Agency within one month and to demonstrate that they had provided the complainant with the appropriate response.

The result of this forwarding did not allow for the understanding that the claims of the complainant were satisfied. Consequently, on April 15, 2024, for the purposes provided in Article 64.1 and 65 of the LOPDGDD, the complaint was admitted for processing. This admission for processing determines the opening of the present procedure for failure to address a request for the exercise of the rights established in Articles 15 to 22 of the GDPR, regulated in Article 64.1 of the LOPDGDD, which states: “When the procedure refers exclusively to the failure to address a request for the exercise of the rights established in Articles 15 to 22 of Regulation (EU) 2016/679 of the European Parliament and of the Council, of April 27, 2016, it shall be initiated by an admission agreement, which shall be adopted in accordance with the provisions of Article 65 of this organic law.

In this case, the deadline for resolving the procedure shall be six months from the date on which the admission agreement was notified to the complainant. After this period, the interested party may consider their complaint to be upheld.”

Article 58.2 of the GDPR grants the Spanish Data Protection Agency a series of corrective powers for the purpose of rectifying any infringement of the GDPR, including “ordering the controller or processor to address the requests for the exercise of the rights of the data subject under this Regulation.”

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Rights of Individuals Regarding Personal Data Protection

The rights of individuals regarding personal data protection are regulated in Articles 15 to 22 of the GDPR and Articles 13 to 18 of the LOPDGDD. These include the rights of access, rectification, erasure, objection, the right to restriction of processing, and the right to data portability.

The formal aspects related to the exercise of these rights are established in Articles 12 of the GDPR and 12 of the LOPDGDD.

Additionally, consideration is given to the provisions expressed in Recitals 59 and following of the GDPR.

In accordance with the provisions of these regulations, the data controller must establish formulas and mechanisms to facilitate the exercise of rights by the data subject, which shall be free of charge (without prejudice to the provisions of Articles 12.5 and 15.3 of the GDPR), and is obliged to respond to requests made no later than one month, unless they can demonstrate that they are unable to identify the data subject, and must express their reasons in case they do not intend to address such request. The burden of proof regarding compliance with the duty to respond to the request for the exercise of rights made by the affected party lies with the controller.

The communication addressed to the data subject regarding their request must be expressed in a concise, transparent, intelligible, and easily accessible manner, using clear and simple language.

Right of Access

In accordance with the provisions of Article 15 of the GDPR and Article 13 of the LOPDGDD, "the data subject has the right to obtain from the data controller confirmation as to whether or not personal data concerning them is being processed and, if so, the right of access to the personal data."

Regarding the right of access to personal data, according to the provisions of Article 13 of the LOPDGDD, when the exercise of the right refers to a large amount of data, the controller may request the affected party to specify the "data or processing activities to which the request refers." The right shall be deemed granted if the controller provides remote access to the data, considering the request to be addressed (although the data subject may request information regarding the aspects provided in Article 15 of the GDPR).

The exercise of this right may be considered repetitive if it is exercised more than once during the six-month period, unless there is a legitimate reason for doing so.

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On the other hand, the request will be considered excessive when the affected party chooses a means different from the one offered that entails a disproportionate cost, which must be borne by the affected party.

Like the other rights of the data subject, the right of access is a personal right. It allows the citizen to obtain information about the processing of their data, the possibility of obtaining a copy of the personal data concerning them that is being processed, as well as information, in particular, about the purposes of the processing, the categories of personal data concerned, the recipients or categories of recipients to whom the data may be communicated, the expected retention period or criteria for retention, the possibility of exercising other rights, the right to lodge a complaint with the supervisory authority, the available information about the source of the data (if it has not been obtained directly from the data subject), the existence of automated decisions, including profiling, and information about transfers of personal data to a third country or to an international organization. The possibility of obtaining a copy

of the personal data being processed will not negatively affect the rights and freedoms of others.

V

Conclusion

We will begin by stating that this claim will only consider whether the requested right, the right of access, has been addressed or not. The other issues raised by the complainant regarding fraudulent contracting and identity theft will not be taken into account in this resolution, but this Agency reserves the right to open an investigation if deemed appropriate.

It should be noted that the complainant in an email dated December 9, 2023, explicitly requests “I want that contracting to be dismissed, as well as that I be sent recorded proof in which it was authorized,” the complainant has responded to the access to their personal data, but not to the access to the recording of the call where they were registered for the service.

During the processing of this procedure, the entity being complained about has responded to this Agency and the complainant but has not demonstrated that it has addressed the entirety of the requested access (data related to the fraudulent contracting operation such as phone number, IP address, or the recording of the call where they were registered for the service are missing).

It is necessary to take into account the provisions of Guidelines 01/2022 on the rights of data subjects — Right of Access Version 2.1, adopted on March 28, 2023, which in its section 107, states the following:

107. Once again, there are situations where the link between the data and several persons may seem blurred for the data controller, such as in the case of identity theft. In the case of identity theft, one person acts fraudulently on behalf of another person. In this context, it is important to remember that the victim must be provided with information about all the personal data that the data controller holds in relation to their identity, including

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those that have been collected based on the actions of the fraudster. In other words, even after the data controller became aware of the identity theft, the personal data associated or related to the identity of the victim constitutes personal data of the data subject.

In this case, the respondent must respond to the complainant by sending the required response to their request, indicating the reasons for denying access to the data that has not been provided and that was requested by the complainant.

Thus, it cannot be accepted that the response that should be given may be expressed in the context of a mere administrative procedure, such as the submission of allegations regarding the present procedure, initiated precisely for not properly addressing the request in question, but rather a response must be given to the respondent themselves.

The aforementioned rules do not allow for the request to be overlooked as if it had not been made, leaving it without the response that the data controllers are obliged to issue, even in the event that there are no data in the files or even in those cases where the requirements set forth are not met, in which case the recipient of such a request is also obliged to require the rectification of the observed deficiencies or, if applicable, to deny the request with justification indicating the reasons why the right in question cannot be considered.

Therefore, the request made obliges the data controller to provide an express response in any case, using any means that justifies the receipt of the response.

Given that there has been no response to the complainant's request regarding access to the data related to the fraudulent contracting operation (phone number, IP address, recording, ...), it is appropriate to uphold the complaint that initiated this procedure.

In view of the cited provisions and others of general application, the Director of the Spanish Data Protection Agency RESOLVES:

FIRST: TO UPHOLD the complaint filed by A.A.A. considering that the provisions of Article 15 of the GDPR have been infringed and to urge OCTOPUS ENERGY ESPAÑA, S.A. with NIF B40563082, to

send to the complainant, within ten working days following the notification of this resolution, a certification addressing the requested right or denying it with justification indicating the reasons why it is not appropriate to grant access to the data related to the fraudulent contracting operation (phone number, IP address, recording, ...), in accordance with the provisions set forth in this resolution. The actions taken as a result of this Resolution must be communicated to this Agency within the same timeframe. Non-compliance with this resolution could result in the commission of an infringement of Article 83.6 of the GDPR, classified as very serious for the purposes of prescription in Article 72.1.m) of the LOPDGDD, which will be sanctioned in accordance with Article 58.2 of the GDPR.

SECOND: NOTIFY this resolution to A.A.A. and to OCTOPUS ENERGY ESPAÑA, S.A.

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In accordance with the provisions of Article 50 of the LOPDGDD, this Resolution will be made public once it has been notified to the interested parties.

Against this resolution, which concludes the administrative procedure in accordance with Article 48.6 of the LOPDGDD, and in accordance with the provisions of Article 123 of the LPACAP, the interested parties may optionally file a motion for reconsideration before the Director of the Spanish Data Protection Agency within one month from the day following the notification of this resolution or directly file an administrative contentious appeal before the Contentious-Administrative Chamber of the National Court, in accordance with the provisions of Article 25 and paragraph 5 of the fourth additional provision of Law 29/1998, of July 13, regulating the Contentious-Administrative Jurisdiction, within two months from the day following the notification of this act, as provided in Article 46.1 of the aforementioned Law.

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Mar España Martí

Director of the Spanish Data Protection Agency

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